



Utah County Attorney's Office

Investigative Report

Case # 19CA00017

Date: 8/27/2019

Investigator: Sgt. Richard C. Hales

INCIDENT: Internal Affairs Investigation – Excessive Use of Force.

SUSPECT OFFICER

Name: Sgt. Doug Howell, Utah County Sheriff's Department

Comments: Sgt. Howell is a Sergeant for the Utah County Sheriff's Department. He is assigned to the Special Enforcement Team in the Detectives Division. His immediate supervisor is Lt. Erik Knutzen.

SUSPECT OFFICER

Name: Det. Phil Crawford, Utah County Sheriff's Department

Comments: Det. Crawford is a Detective for the Utah County Sheriff's Department. He is assigned to the Special Enforcement Team in the Detectives Division. His immediate supervisor is Sgt. Doug Howell.

SUSPECT OFFICER

Name: Officer Cullen Carter, Spanish Fork Police Department

Comments: Officer Carter is a Patrol Officer for Spanish Fork P.D. At the time of these incidents, he was employed by Salem Police Department and assigned part-time to Utah County Major Crimes. His immediate supervisor at the time of the incidents was Sgt. Greg Smith and Lt. Greg Gurney, Salem Police Department.

WITNESSES AND VICTIMS

There is a significant list of witnesses along with two victims in this case. Please see the contacts list attached to the case file for names and contact information.



Utah County Attorney's Office

Investigative Report

COMPLAINT: On May 9, 2019, I was assigned as the Interim Bureau Chief for the Utah County Attorney's Bureau of Investigations because Chief Scott Finch was leaving the country for a vacation.

On May 10, 2019, I was asked to respond to Chief Deputy Utah County Attorney Larry Weiss' office. Upon my arrival, I was briefed on information obtained through the Civil Division of the Utah County Attorney on two separate incidents involving law enforcement use of force, the first being January 30, 2019 and the second being February 4, 2019. Both involved use of force by a Utah County Sergeant named Doug Howell. It was later determined in the second incident that Sgt. Howell was involved, as well as two other officers, Detective Phil Crawford and Officer Cullen Carter. There was dash camera footage of the February 4, 2019 incident. Chad Grunander, Criminal Chief Deputy, Utah County Attorney was present at the meeting where the video was played. It was decided further investigation into the two incidents was required.

I was provided reports and use of force reports for both incidents, as well as video of dash camera from Deputy Nic Freidrichsen's patrol vehicle for the February 4th incident.

BACKGROUND: In Utah County there is a specialized unit called Utah County Major Crimes (UCMC). This unit consists of officers from several different police agencies throughout Utah County and is a pro-active law enforcement team. It is administered by a police lieutenant from Orem Police Department acting as the Director. Also, there is a police lieutenant from Utah County Sheriff's Department acting as the Field Director. Those two are responsible for the day to day operations of UCMC with assistance from first line supervisors, usually sergeants from various departments throughout Utah County.

The directors of UCMC are required to answer to a board consisting of law enforcement administrators, IE: Chief's of Police and Sheriff.

Also, in Utah County, many police departments have their own specialized units to work hand in hand with UCMC on certain cases. These units are called Special Enforcement Teams (SET Teams). The SET Teams are generally small units supervised by a Sergeant at the local department. On occasion, the two separate units will work together on cases. They also will share reports and assignments. For example, SET Team officers will have access to UCMC reports and be able to author UCMC reports in the report writing system.

Further background relative to this case: On January 5, 2019, Officer Joseph Shinnars, Provo Police was murdered in Orem, UT. At the time of his death, he was assigned to the Patrol Division for Provo Police Department. Along with his Patrol Lieutenant, Jerid Barney, they were working with an informant from Utah County Major Crimes named [REDACTED]. They were trying to apprehend a known felon who was armed with a gun and had numerous serious felony warrants. This will become pertinent later in the report.

FIRST INCIDENT DETAILS: On January 29, 2019, Michael Roy was arrested in American Fork, UT for retail theft at Home Depot. The crime was a felony offense. Roy was met by Detective Shaun Lott, American Fork Police Detective assigned to UCMC. A conversation took



Utah County Attorney's Office

Investigative Report

place where Lott offered a deal to work the charges off and become a confidential informant. Lott took information for the arrest and was provided identifying information by Michael Roy. He was released from custody.

On January 30, 2019, less than 24 hours later, officers received information about a wanted individual named Michael Schwabland. This individual was considered very dangerous and made threats to shoot at officers and suicide by cop. UCMC officers had actively been looking for Schwabland. Information concerning Schwabland was coming from a known informant named [REDACTED] who claimed [REDACTED] was with the suspect. [REDACTED] was in direct contact with Sgt. Doug Howell during this time. Howell had issued [REDACTED] a GPS tracking device prior to meeting with the suspect.

Officers created a plan to take Schwabland into custody. This plan consisted of numerous plain clothes officers, unmarked vehicles, uniformed officers, marked vehicles and an airplane in case of an evading situation. The plan was to pin the suspect vehicle in with police vehicles, stopping any chance of escape, and to call the suspect out of the vehicle.

The suspect vehicle stopped by the gas pumps at the Last Chance Gas Station located at 500 North State in Orem, UT. Howell stopped his vehicle behind the suspect vehicle. Det. Shaun Lott stopped his vehicle in front of the suspect vehicle. Other detectives surrounded the suspect vehicle.

Instead of calling the suspect out as planned, Howell and Lott approached the suspect vehicle. Lott, with police identification on and his gun drawn, moved to the driver. Howell exited his vehicle rushing the driver's side door armed with a MP-5 assault rifle. All officers were giving verbal commands to "show your hands." Lott immediately recognized the suspect as Michael Roy from earlier in American Fork. Lott opened the door and swiped a closed folding knife from the suspect's lap.

Officers stated they believed the suspect was resisting and refusing to exit the vehicle. Howell was trying to pull the suspect from the cab and in doing so, tore the shirt of the suspect. Lott determined the suspect still had a seatbelt on and he released the belt, allowing officers to pull the suspect out of the vehicle to the ground.

While the suspect was being pushed to the ground, he was hit in the head with Howell's MP-5, causing a serious cut to his head just above the left ear. In Howell's reports he admitted to using his MP-5 as a compliance tool against the suspect to get him to the ground. Witness officers had different statements regarding how the MP-5 hit the suspect.

Sgt. Howell's UCMC incident report stated the suspect was refusing to get out of the vehicle and refusing to comply with commands. When they got the suspect out, he refused to go to the ground. Howell admitted to hitting the suspect with the MP-5.



Utah County Attorney's Office

Investigative Report

Sgt. Howell's use of force report stated, *officers first ordered him out at gunpoint. He refused. We then tried to pull him out and in doing so tore his shirt. We then tried to take him to the ground. Multiple officers were struggling with him at this time. I then struck him on the shoulders with the fore end and magazine of my MP-5. The magazine caught the side of his head causing a small bleeding cut. He then collapsed to the ground but still refused to give us his hands. Multiple officers struck the suspect on the shoulders and arms until he complied. **The fore end of a long gun/MP5 is the part between the chamber and the barrel, usually used to stabilize the gun from a shooting position.***

Officer Cullen Carter stated he was standing near the driver's side rear fender of the suspect's vehicle. He said Howell had slung the MP-5 and when the suspect went to the ground, the gun swung around Howell's shoulder hitting the suspect in the head.

Detective Lott stated Howell slung the MP-5 and somehow it hit the suspect in the head. He stated he didn't have a clear view of what happened.

Detective Zac Robinson, Spanish Fork Police Department, assigned to UCMC, stated the suspect was resisting arrest. Upon his arrival the suspect was in a prone position on the ground. The suspect was kicking with his legs. Robinson deployed his Taser, taking the cartridge off to use as a "dry stun." Robinson put the Taser to the suspect's calf giving verbal commands to stop resisting or he would be tased. As the suspect was kicking, the Taser fired, sending an arc. Robinson heard the arc and immediately pulled the Taser back from the calf. Officers were able to safely cuff the suspect.

Detective Brandon Johnson, Spanish Fork Police Department, stated he didn't see the suspect get hit or tased. Johnson later confirmed the suspect in custody was not Schwabland, but Michael Roy. He knew Roy from prior dealings with him.

Detective Tanner Grow, Orem Police Department, assigned to UCMC, stated he assisted with the custody by helping get the handcuffs on the suspect. Grow stated the suspect was resisting officers and he did give the suspect some "distraction strikes to his buttocks with my foot" attempting to get the suspect to release his hands.

UCMC Field Director Lt. Dennis Harris arrived at the scene and met with the Michael Roy. Due to the fact the person was in possession of controlled substances and paraphernalia, but he had mistakenly been arrested for someone else, Lt. Harris said he was willing to work with him. Lt. Harris offered him \$2,000 to become an informant for UCMC. Eventually Roy and Rodgers were allowed to leave without any criminal charges.

Attempts to interview Lt. Harris were unsuccessful due to the fact he retained legal counsel regarding this incident. His attorney advised he was not going to make a statement.

Lt. Harris did complete an incident report. In his report he clearly stated he met with Roy and made the offer of \$2,000.



Utah County Attorney's Office

Investigative Report

The investigation has confirmed there were no photographs of Roy taken at the scene by officers. Officers failed to obtain video security footage from the gas station which we confirmed later was available the night of the incident. The video footage purges every 14 days and therefore deleted. Our investigation has not been able to find any officers on scene of this incident that had viable body camera footage.

INTERVIEW WITH MICHAEL ROY: On June 24, 2019, we interviewed Michael Roy. It should be noted he has spoken to us on numerous occasions and to see detailed information please refer to his interview reports.

Roy told us about being arrested on January 29, 2019 at Home Depot in American Fork and being released to work as a possible informant for UCMC and Det. Lott.

On January 30, 2019, he was with [REDACTED] in his vehicle. They purchased heroin and went to the Last Chance Gas Station. Upon stopping at the pumps, a bunch of plain clothes officers stopped and jumped out of their vehicles with guns drawn. The first officer he saw was Detective Shaun Lott. He remembered him from the night before at Home Depot. Lott was approaching with gun out and pointed at him. Lott was yelling commands to show his hands which he did.

Roy stated he had an empty bag and a knife in his lap. The knife was used to cut up the heroin they just purchased. Lott pushed the knife off his lap and he was taken to the ground. Roy claimed he was tased by officers after being on the ground. He stated he was hit in the head with the butt of a rifle that was camouflage in color. He could not identify the officer that hit him with gun. The officers were yelling at him, calling him names. He stated blood was coming from the head wound and the officers stood him up to a standing position. Paramedics looked at the head injury and advised it needed stitches.

Det. Lott came to talk to him. Roy asked, "What the fuck is this about?" Lott explained he thought he was Michael Schwabland and questioned Roy about possible false information. Roy answered, "I'm Michael fucking Roy." Roy stated Lott knew the whole time who he was.

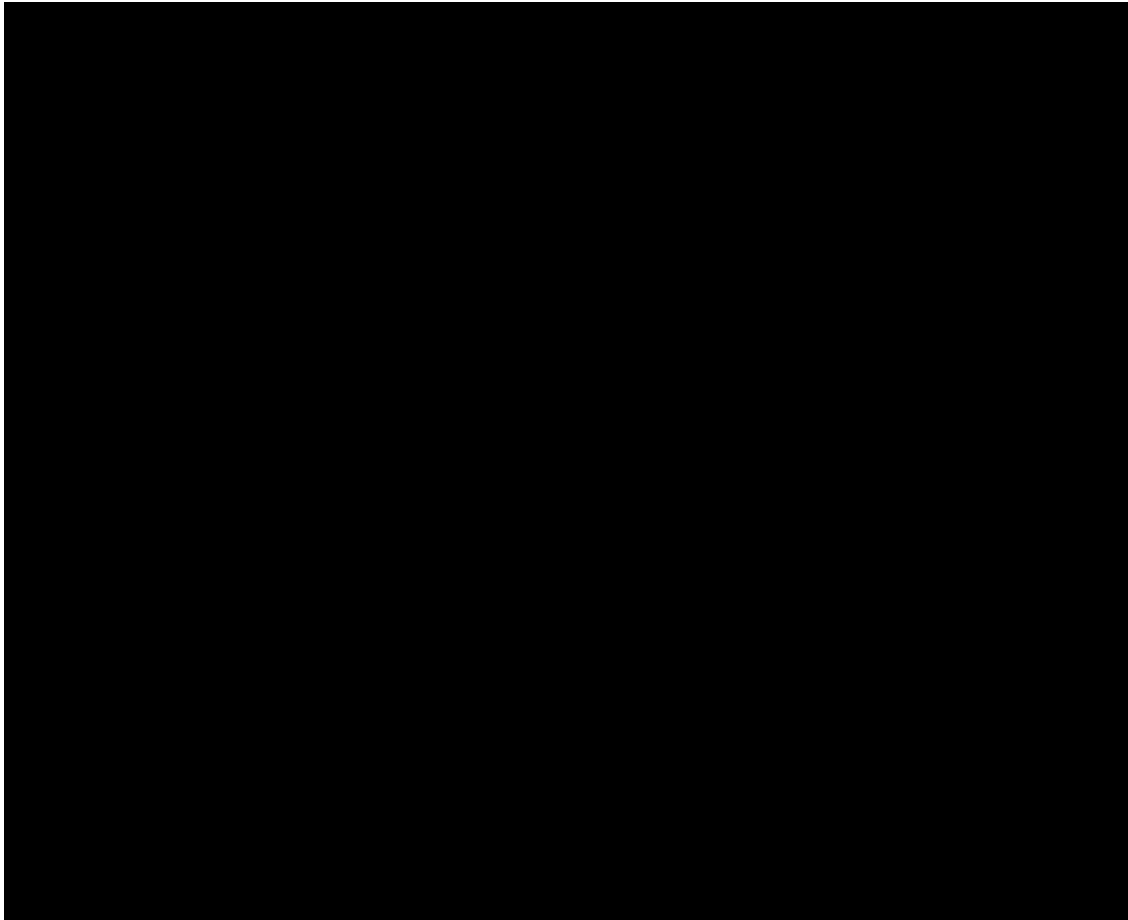
Roy explained a police administrator approached him wanting to give him \$2,000 to fix the mix up in identity. The police administrator told him he could work for UCMC and they would take care of any medical bills from the injury.

Roy said he and [REDACTED] were released from the scene. Hours later Roy went to Mountain View Hospital in Payson, UT. The ER doctor put four staples in his head to close the wound from being hit with the gun.



Utah County Attorney's Office

Investigative Report



The initial summary written by the ER doctor was as follows;



I was later provided photographs of Roy after leaving the scene and at the hospital. The photos were taken by Michael Roy's girlfriend. On June 24, 2019, I took a photo of the scar on Roy's head. They are attached to the case file.

Roy confirmed he was paid \$2,000 all in twenty-dollar bills from Det. Lott. Roy considered the money as "hush money" so as not to talk to anyone about the incident.



Utah County Attorney's Office

Investigative Report

They rendered a decision based on the reports alone. In the use of force report, Howell writes, "I then struck him on the shoulders with the fore end and magazine of my MP5. The magazine caught the side of his head causing a small bleeding cut. He then collapsed to the ground but still refused to give us his hands."

Lt. Erik Knutzen reviewed the report and determined the use of force was not justified. His issue was using the MP5 as an intermediate use of force tool being outside of policy. He recommended a board review.

Chief Mike Brower reviewed the report and expressed concern about the use of force. He recommended a board review as well.

On April 4, 2019, a Use of Force Board issued a report concerning this incident. The report stated the Board unanimously agreed Sgt. Doug Howell was outside of Department Policy and the force used was not reasonable or necessary.

CONCLUSION FIRST INCIDENT: During the investigation of this incident and interviewing some of the witness officers one thing became clear. Some witness officers were not telling the whole story in terms of what they observed.

For example, Det. Lott stated the injury to Roy was from Howell's long gun. Lott contended the weapon was slung and Howell was wrestling with him. The gun hit Roy in the head during the hands-on arrest of Roy.

Det. Lott admitted he suspected the driver of the vehicle was not Michael Schwabland but Michael Roy. This was based on the fact of the incident at Home Depot less than 24 hours earlier. Det. Lott didn't do anything to stop the beating/arrest of Roy.

Officer Cullen Carter in his interview was confident Howell's gun hit Roy in the head causing the injury. Carter was adamant the gun was slung and hit Roy by accident as Howell was going hands on to secure the suspect.

Both of these statements are in direct conflict with Sgt. Howell's written reports where he admitted to using the MP5 to hit the suspect.

There was a lack of investigation by UCMC or UCSO administration into the event. There is no evidence anyone asked to recover the security video from the gas station the day it took place. No investigative photos were taken either.

Lt. Harris, the Field Director for UCMC and senior administrator for the Sheriff's Department paid \$2,000 to Michael Roy from an unknown source of funds days after the incident.

This is a summary of information. Please review all reports, photos, and statements attached to the case file for detailed information.



Utah County Attorney's Office

Investigative Report

SECOND INCIDENT DETAILS: On February 4, 2019, officers from Utah County Sheriff's Department were working on a pro-active drug case in the Orem area. Sgt. Doug Howell was the supervisor for the operation. Deputies observed the suspected drug dealer leave a known drug house. A patrol deputy and detectives observed a traffic violation. The officers made a coordinated effort to have the patrol deputy make a traffic stop. The suspect refused to stop and fled by vehicle north on I-15 at a high rate of speed. The patrol deputy terminated the pursuit per department policy. Sgt. Howell and other detectives continued to follow the suspect in unmarked vehicles at speeds over 90 mph.

A short time later, an effort to forcibly stop the vehicle using a box technique was attempted. It failed and the suspect continued to evade. Detective Phil Crawford in an unmarked mini-van following the suspect asked for permission to "PIT" the suspect vehicle. Sgt. Howell authorized the maneuver, but only at slow speeds. The suspect wrecked in the American Fork area (1100 South 500 East). Detective Crawford used his vehicle to pin/ram the suspect vehicle to prevent him from further evading. Upon hitting the suspect vehicle, the air bags deployed in Crawford's vehicle.

Deputies quickly approached the driver and ordered him to exit the vehicle. The driver reportedly refused and was forcibly removed from the vehicle.

During the events of the arrest inside the vehicle, the suspect hit Sgt. Howell in the face causing his eye wear to come off his face. The suspect was pulled from the vehicle and put on the ground by several officers. While he was on the ground, he continued to refuse to give up his hands for handcuffing. Sgt. Howell kicked the suspect several times while he was being held by three officers. Sgt. Howell continued to kick him until Deputy Dukatz stepped in to stop him.

The incident was video recorded by Deputy Friedrichsen's dash camera. There is no audio of the incident.

The driver of the suspect vehicle was known to officers from the start. Jeremy Johnson was arrested for numerous misdemeanor crimes. Deputy Friedrichsen was assigned as the case officer. Friedrichsen transported Johnson to Utah Valley Hospital for a medical release for booking into jail.

EMERGENCY ROOM DOCTOR REPORT:

In the report completed by Dr. Douglas Murdock MD, the doctor [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]



_____.

MORE PHOTOS ATTACHED TO CASE FILE.

Further Details: On February 14, 2019, Sgt. Greg Smith, Salem Police Department was contacted by Deputy Nic Friedrichsen and Deputy Ray Flores from UCSO. Deputy Friedrichsen was frustrated with Officer Cullen Carter due to the fact Carter had not completed a report on the



Utah County Attorney's Office

Investigative Report

Johnson arrest. Smith was under the assumption the deputies were talking about the January 30, 2019 incident. As the conversation went on, Smith realized the deputies were discussing a separate incident. The deputies suggested to Smith to review case 19UC01230 and the attached video.

Smith being Carter's supervisor took it upon himself to investigate what Flores and Friedrichsen told him. Smith went to the office and looked up the case number in Spillman (*Police Reporting System*.) Smith stated he read the reports and watched the video the deputies were referring to.

After reviewing the information, he contacted his supervisor, Lt. Greg Gurney, stating he thought there was a use of force issue regarding officer Cullen Carter. Smith explained in his opinion of viewing the video and slowing it down frame by frame, Carter was raising his arm/elbow in a punching or hitting motion. He described it as if the elbow was moving from an L-position or 90-degrees punching the suspect. Smith said it occurred multiple times.

I asked Smith if any of the deputies told him their opinion of Carter hitting the suspect. He stated they didn't offer any opinion. Just to review the video. I asked if he shared his opinion with Lt. Gurney; Smith said it was possible.

Lt. Gurney opened an internal affairs investigation on Carter regarding this incident.

On February 15, 2019, Lt. Greg Gurney, Salem Police Department started an investigation as mentioned. He reviewed the reports and video from the February 4, 2019 incident. He determined Cullen Carter was there and was involved in a use of force incident. Gurney contacted administration of Utah County Major Crimes due to the fact Carter is assigned part-time to UCMC. Lt. BJ Robinson, Director of UCMC guided Gurney to the Sheriff's Department stating this was a SET Team issue, not UCMC issue.

Gurney contacted Lt. Erik Knutzen, UCSO Detectives Lieutenant. He was forwarded to Chief Mike Brower, Chief Deputy Enforcement Division. After conversations, Lt. Gurney formally requested all reports along with use of force reports related to this incident.

Next, Gurney called Officer Carter into the office. During their conversation, with no Garrity issued, Carter was ordered to write a report about the incident regarding Jeremy Johnson's arrest.

Gurney confronted Carter about the alleged punching of Johnson. Carter denied any punching or hitting the suspect. Carter stated he was controlling the suspect's head. Gurney advised Chief Brad James, Salem Police Department of the issues. Chief James contacted Sheriff Mike Smith, Utah County Sheriff. They had a meeting regarding this issue because Chief James wanted to work together with Sheriff Smith investigating the incident. Sheriff Smith asked Chief James to hold his investigation, giving the Sheriff some time to get prepared. After weeks without contact from the Sheriff, Cullen Carter resigned from Salem Police Department, basically ending the IA investigation on Carter.



Utah County Attorney's Office

Investigative Report

Lt. Gurney stated the IA on Carter is still open but without cooperation from the Sheriff's Department and Carter leaving, there isn't any reason to go forward.

On or about February 5, 2019, Sgt. Doug Howell authored a police report and a use of force report about this incident. Sgt. Howell briefly described what took place during the arrest of Jeremy Johnson. Johnson refused to exit the vehicle by saying "Fuck you, I'm not getting out." The windows were broken out and they struggled with Johnson. During this time, Johnson reportedly assaulted Howell by hitting him in the face, knocking his glasses off. Friedrichsen displayed a taser and Johnson was told they would use it if he didn't stop resisting. Deputies were able to secure him at that point.

Sgt. Howell stated the use of force used was drawing handguns first. He admitted to hitting Johnson several times after being assaulted. After Johnson was on the ground, he admitted to several punches and kicks to his shoulder and arms to fatigue Johnson and gain control.

Sgt. Howell stated Johnson received several injuries such as redness around his head and neck, redness on his face from being held down in the gravel, other scratches and bruises from the altercation, and bruises on his left shoulder where he was kicked and hit as a compliance technique.

Lt. Erik Knutzen reviewed the reports and video. He had numerous concerns of several violations of department policies including pursuit and use of force. He stated it's unclear from the video and poor quality if Howell is kicking Johnson in the head. He labeled the use of force as unjustified. Knutzen spoke about being contacted by Lt. Gurney from Salem P.D. Gurney commented to Knutzen that the kicks by Sgt. Howell to the suspect were punitive.

Chief Mike Brower summarized the incident. He stated he observed Sgt. Howell approaching the suspect who was on the ground. Howell kicked the suspect several times. Chief Brower mentioned the fact that the original offense for the stop was a minor traffic violation and possible drug possession. He stated, "The question arises, did the suspect present an immediate threat to officers or the public?" Based on the suspect's combative behavior, hitting and kicking at law enforcement, he believed they were justified in using reasonable force to apprehend the suspect. However, the use of force used by Sgt. Howell does not seem reasonable and justified in this case.

He requested a use of force board be convened for further investigation.

On March 28, 2019, a use of force board issued a finding. The board consisted of two Lieutenants, two Sergeants and one Deputy from the Utah County Sheriff's Department. It should be noted the board only used reports and video for their findings. No interviews were done by the board members.

All board members believe the actions of using kicks as a means of gaining compliance are within Utah County Policy and Procedures.



Utah County Attorney's Office

Investigative Report

As to Sgt. Howell's force used, there was a split in their comments. One Lieutenant, one Sergeant and the one Deputy believed the use of force by Sgt. Howell was both reasonable and necessary. They stated the suspect was resisting arrest by refusing to comply with orders. They believed the suspect posed an immediate threat to the officers and had already assaulted Sgt. Howell.

The three members go further by saying because of the terrain and location of the arrest, Sgt. Howell elected to use kicks instead of hand strikes. They commented Sgt. Howell's 8-10 kicks were delivered to a specific area of the suspect for the purpose of getting compliance.

The other two board members, one Lieutenant and one Sergeant, somewhat disagreed.

The Sergeant stated, "After reviewing policy, I believe Sgt. Howell's actions were within policy as written." As to the question were they reasonable and necessary, he felt they were not. He stated, "I do not believe a reasonable officer in the same situation with the same knowledge would have delivered kicks to the suspect." He stated there were other means of less lethal options available on the scene and had a higher likelihood of success. He offered the fact that only after the taser option was introduced did the suspect comply.

The Lieutenant stated the use of force by Sgt. Howell was inconclusive. He based this on the limited resources allowed the board members because of not being able to interview those involved. He continued saying there is some level of force necessary because the suspect was resisting. He questioned whether the suspect was an immediate threat based on the fact at least two deputies are sitting on him at the time Sgt. Howell delivered the kicks.

He believed the evidence shows the kicks are not to the head area of the suspect.

In conclusion, the Lieutenant stated he believed further investigation was needed to conclusively determine what occurred. This could only be done by interviewing and clarifying the actions of Sgt. Howell. The board stated there was a need for supervisory training in critical and stressful incidents.

WITNESS OFFICER INTERVIEWS:

Cullen Carter: *It should be noted, at the time of this interview, the investigation was unaware of the allegation against Carter for punching the suspect. Therefore, this interview was done in the tone of him being a witness officer.*

On May 26, 2019, Sgt. Seitzinger and I met with Officer Cullen Carter at Spanish Fork P.D. Carter was working for Salem P.D. at the time of the February 4th incident.



Utah County Attorney's Office

Investigative Report

Carter was in the back seat of Sgt. Howell's vehicle. They were working a drug house in Orem, UT. The plan was to have a patrol deputy stop suspected drug offenders on traffic probable cause and investigate.

Jeremy Johnson, a known drug offender, left the house and made several traffic violations. Deputy Friedrichsen attempted a traffic stop near I-15 and Center Street in Orem. Johnson fled from the Deputy. When Johnson evaded the stop, Friedrichsen terminated the stop and pursuit. Carter stated Howell and Crawford continued to "follow" the suspect vehicle northbound on I-15 at speeds in excess of 90 mph.

Carter in the backseat and working computer traffic learned that Johnson had fled from officers in December 2018. A foot pursuit took place prior to the arrest. Carter advised Sgt. Howell of his findings as they were "following." Carter noted Deputy Daniel Dukatz was in the front passenger seat of Howell's vehicle.

Carter stated the suspect vehicle exited I-15 and Sgt. Howell, along with Det. Crawford, elected to do a box in method traffic stop. As they exited, the suspect abruptly went left and headed south on 500 East in American Fork. Sgt. Howell had already committed to going right and couldn't recover due to the cement wall to the left. Det. Crawford stayed on the suspect vehicle. Det. Crawford asked for permission to PIT (*Pursuit Intervention Technique*) the suspect vehicle. Sgt. Howell authorized the PIT but only at slow speed. Sgt. Howell had to go north on 500 East for a significant distance before being able to turn around.

Carter stated he observed the air bags in Crawford's vehicle had deployed. Both Crawford and Mortensen were out of their vehicle and in contact with the suspect.

Carter stated he exited Howell's truck going to the front of the suspect vehicle. Howell was at the passenger side front door. He wasn't sure where Dukatz was. Carter was looking directly through the windshield at the suspect and Howell. Carter observed the suspect hit Howell in the face, causing Howell to lose his prescription glasses. A physical confrontation ensued between Howell and the suspect. Carter stated after the assault he moved to the rear passenger door and kicked in the window. Crawford was able to remove the suspect through the driver side door window.

The suspect was moved to the ground behind the suspect's vehicle. Carter explained how the shoulder of the road was gravel and sloped down steeply. He said he had control of the suspect's head while Crawford and Mortensen had his feet and body. The suspect was refusing to comply with any verbal commands and refused to give his hands up for handcuffing. The suspect was put on the ground facing downhill or down slope from the road. Sgt. Howell approached and gave the suspect several kicks to the shoulder area as a distraction to get the suspect to release his hands. Eventually, the suspect surrendered and was handcuffed.

Carter stated medical personnel were summoned and treated the suspect for some abrasions and Det. Crawford for a laceration of a finger.



Utah County Attorney's Office

Investigative Report

I asked Carter if anyone used or threatened to use a taser. He stated Friedrichsen had a taser but didn't deploy it. He was unsure if Friedrichsen threatened to use it with the suspect.

Carter stated he was assigned to search the vehicle and only found a handcuff key. He later learned it was possible the suspect had thrown the drugs he purchased out during the pursuit.

I asked Carter if he and Sgt. Howell had discussed this incident after it occurred. He stated a little bit but not much.

Lastly, I wanted to know if any part of this event or actions by Sgt. Howell or any of the officers involved caused him alarm. He stated nothing bothered him about this incident and as for the actions of Sgt. Howell, he had been assaulted by the suspect and he was good with Howell's actions. He commented there are supervisors around here with 15 plus years that would have done the same thing years ago. (Recorded)

Deputy Daniel Dukatz: On May 20, 2019, Sgt. Seitzinger and I interviewed Deputy Daniel Dukatz from the Utah County Sheriff's Department. *In the introduction of the interview I made a mistake and quoted the wrong day for the occurrence of this incident. I stated it was on January 30, 2019 and it occurred on February 4, 2019.*

I asked Dukatz about photographs taken at the scene. He stated he may have taken some photos of the vehicles on Snap Chat and sent them to some friends. He stated the photos were not saved and he didn't have them.

Dukatz describe the same facts as Carter in terms of the investigation and stop. He confirmed the same radio traffic as Carter. Dukatz stated all the officers were yelling commands at the suspect. The suspect was taken out through the driver's side door window and to the ground.

Dukatz stated he ran around the car to the back area where the suspect was on the ground. He heard Crawford yelling to the suspect to stop resisting. He then turned around to retrieve his K-9 in case it was needed for assistance. He heard the officers with the suspect yell out, 10-82, (meaning in custody) so Dukatz didn't deploy his K-9.

He went back to the suspect who was still on the ground. He and Mortensen searched the suspect's person for evidence and weapons. There were some small items of evidence recovered from the suspect and his vehicle.

The next part of the interview I asked him specific questions about the event. Deputy Dukatz answered the questions very vaguely and continued to say he couldn't remember specific events, especially when the question regarded any of Sgt. Howell's actions. It appeared when questioned about any action that could be determined to be close to a violation of department policy, Dukatz couldn't remember.



Utah County Attorney's Office

Investigative Report

I elected to show the dash camera video to Dukatz to refresh his memory. Upon seeing the video Dukatz stated, "I don't have any recollection of that." I asked him how it made him feel. He said he couldn't believe he can't remember any of that or anything he said to him.

I asked more questions specific to the incident and he continued to reply that he didn't recall. I asked him specifically if he observed any injuries to Sgt. Howell; he replied he didn't recall. I asked about Sgt. Howell being assaulted inside the suspect vehicle. He replied that he didn't recall.

It was apparent Deputy Dukatz was being cautious in what he stated and being selective in his responses to the questions. *(It's my opinion Deputy Dukatz was intentionally omitting facts of what he observed.) (Recorded)*

Deputy Nic Friedrichsen: On May 20, 2019, Sgt. Seitzinger and I interviewed Deputy Friedrichsen. It should be noted he wrote a lengthy report and was referring to the report throughout the interview.

Friedrichsen confirmed the facts related to the attempted stop and detectives following. He confirmed the stop made in American Fork.

Friedrichsen located Detective Crawford's unmarked vehicle and the suspect's vehicle off the side of the road located at 1100 South 500 East. He observed the detectives out of their vehicles with weapons in hand giving the suspect driver verbal commands. Entry was made into the suspect's vehicle and Jeremy Johnson was extricated from the vehicle through a driver side window. Friedrichsen stated he later heard Sgt. Howell was assaulted by Johnson.

Friedrichsen continued to hear detectives giving commands as Johnson was resisting. The commands were "Stop resisting," "Give me your hands," etc. Friedrichsen observed detectives giving physical strikes to Johnson's back, head and sides to get control of his hands. Friedrichsen stated he took out his taser without a cartridge for a dry fire and put it on Johnson's shoulder. Friedrichsen told Johnson to stop resisting and give up his hands or he would be tased. Johnson moved his hands to the small of his back and allowed detectives to handcuff him.

Medical personnel from American Fork responded to evaluate and treat Detective Crawford and Jeremy Johnson.

The traffic accident investigation was conflicted to AFD. Case number 19AF00915.

Friedrichsen was advised he was going to be the case officer. He took custody of Johnson and transported him to UVRMC for medical clearance to be booked. Detective Crawford wrote an affidavit for a search warrant and was able to obtain a search warrant for blood and urine evidence from Jeremy Johnson.

Deputy Dukatz and Officer Carter conducted the search and impound of Johnson's vehicle.



Utah County Attorney's Office

Investigative Report

Upon receiving medical clearance, Friedrichsen booked Johnson into the Utah County Jail for several misdemeanor charges.

At the conclusion of the interview I asked specific questions regarding Sgt. Howell's actions. Friedrichsen was very careful how he answered. He stated he could only talk about facts he was aware of and couldn't comment on Sgt. Howell's actions because he didn't know what Sgt. Howell had experienced or what going on in his mind. I asked if the force used was justified. Friedrichsen stated the force he (*meaning himself*) used with the threat of the deployment of the taser was reasonable in his mind. I pushed him more on Sgt. Howell's use of force. He would only say the force he (*Friedrichsen*) used was reasonable and wasn't commenting on the others due to the fact he wasn't aware of what they knew or perceived.

I asked him if he had spoken to Sgt. Howell about this incident. He stated he had spoken to him and others. I asked the substance of the conversation. He wouldn't say any more than it is what it is. He stated that he wanted to use this as a learning experience, especially the pursuit part.

He continued to deflect answering the questions regarding Sgt. Howell.

I advised him the standard police officers are held to is the force that a reasonable officer would use at the scene. I asked him for his opinion because he was at the scene. He deflected the answer by saying the force he personally used was reasonable. (*Review Friedrichsen's report and audio of interview.*)

Detective Justin Mortensen: On May 21, 2019, Sgt. Tischner and Sgt. Johnston interviewed Det. Mortensen. Again, the basic facts leading to the stop were confirmed by Mortensen.

The next part is Mortensen's statements regarding the use of force during the arrest. I am copying and pasting portions of Sgt. Patty Johnston's report related to this.

Mortensen and Crawford exited the van while Johnson remained in the vehicle for "longer than a moment." They ordered Johnson at gunpoint to put hands where they could be seen; after "a minute," he complied. They also ordered him to get out of the car to which he repeatedly replied, "Fuck you. I'm not getting out."

At that time, Howell and Dukatz arrived and "detectives began to assist Jeremy from the vehicle." I asked Mortensen what "assist" means. He answered, "'Assist' was he wasn't going to get out of the vehicle, so we were going to take him out of the vehicle." Howell entered Johnson's vehicle through the passenger door; Johnson immediately punched Howell in the head. Mortensen was still at the driver's window, so he was able to see everything.

I asked Mortensen where it was that Johnson hit Howell. He said Johnson punched Howell in the face, knocking his glasses into the backseat. I asked if Howell sustained injury. He replied, "None



Utah County Attorney's Office

Investigative Report

of us went to the hospital." He relayed that Howell did not complain about injury; Mortensen surmised that perhaps Howell had been hit "on top of the head where it's stronger."

I read from Mortensen's report: "Detectives delivered several strikes to Jeremy's large muscle groups on his arms." I asked, "Just his arms?" Mortensen answered, "Arms and legs. Just anywhere we could get standard pain compliance like they teach us in the corrections academy." (Mortensen later expounded this statement later in the interview.)

Dukat let go of Johnson while Crawford and Mortensen pulled him to the ground. Johnson immediately "sucked up" his arms and began kicking Mortensen in the back. Mortensen then put his knee on the back of Johnson's knee. Johnson had one arm where Mortensen could see it but Johnson was trying to pull it back in. (Mortensen noted that Johnson was a "big guy.") As such, Mortensen struck Johnson's hip area with a closed fist (Mortensen would not characterize this a punch). His purpose was to put pressure on Johnson's rib cage. The tactic worked and Mortensen was able to get Johnson's right hand and get it cuffed. (Mortensen later said that he was only able to get Johnson's hand when he delivered two or three strikes to his "lower rib cage.") Mortensen stated that he could not get Johnson's left hand because Crawford was on top of Johnson's upper half, while Mortensen was on his bottom half.

I asked Mortensen what Crawford was doing on Johnson's "upper half." Mortensen replied that he did not remember. He said Johnson was still fighting and Crawford was holding him down. Both Mortensen and Crawford were straddling him so Mortensen could not get to Johnson's left arm. It was Crawford's responsibility to get Johnson's left arm so Mortensen could cuff him.

I asked about Deputy Dukat. Mortensen replied that he didn't know what Dukat was doing. I asked where Friedrichsen was while the fight was occurring. Mortensen said he did not know.

I asked where Howell was at. Mortensen explained that Howell got out of the driver's side and "came around with us." Mortensen noted that later, Howell joked, "I wanted to get in and help you guys, but I couldn't because you guys completely covered him." Crawford was facing away from Mortensen and Mortensen was looking at Crawford's back. Howell ran to Mortensen's left. Mortensen recalled seeing Howell and Dukat to his left.

I asked Mortensen what Doug was doing. He answered,

Doug was--I know Doug was -- I know I was—I remember telling everybody, 'Get his left hand -- I've got the right one. I need his left hand.' So I took the handcuff and cranked it up to get a little more pain compliance to get him in cuffs. And then I remember nobody could get in down on him to help us out because we were just taking too much space. I remember --- I want to say Doug like started -- just kicked his shoulder a couple of times to get the -- like the same we would in the jail with a strike. And then as soon as --- after a couple kicks the arm came out and I got it cuffed --- and I'm like 'okay we're good.' Everybody off and then we stood him up.



Utah County Attorney's Office

Investigative Report

I wouldn't even consider it a kick. I mean it was—had we been in a jail setting, somebody would have probably been on our knees fighting him and somebody would have just been doing the exact same thing, with a knee strike. But nobody could get in that close because we were just right here next to the van. I don't think we were that far from it, less than a foot probably if I remember correctly. So I think Doug just kicked right here (pointing to his left shoulder) a couple times and as soon as the arm broke free --- mean as so as it came out, I had that cuff on and I told everybody 'Okay. 10-82' and then everybody backed off.

I asked Mortensen if Crawford actually needed Howell's help. After a pause, Mortensen replied,

"Yes, 'cuz Crawford was --- I can't remember if the guy was fighting with his head or flailing it around. It was a fight. It was probably one of the bigger fights --- you've been on forced cell entries when you take them down and it's a continual brawl, even sometimes after they're cuffed. So I would say, 'Yeah,' that we still needed the assistance of other guys."

I told Mortensen that it was my understanding that EMS checked Johnson out and then sent him to the hospital. I asked if that was protocol. He believed it was because the jail might have refused him (without medical clearance) because he had "been in a crash" and because "he had put up one hell of a fight."

I told Mortensen that Howell had done more than just knee Johnson or kick him in the shoulder. The following exchange then ensued:

Johnston: Is that reasonable, or is that policy, to kick someone repeatedly?

Mortensen: If it had been a knee strike in the jail, you keep going until you get them in compliance.

Johnston: What about kicks to the head?

Mortensen: I don't think Doug could have got him to the head.

Johnston: What if I told you that he did?

Mortensen: Ok then I didn't see that. I don't even remember it from the video. I've only seen the video once. The only time I knew even Doug kicked him was from the video.

Mortensen reiterated that it was a fight. He recalled that Dukatz was trying to get in on him. Mortensen recalls Johnson's left arm coming out, but he didn't remember Doug kicking him; even from the video Mortensen did not remember Howell kicking Johnson in the head. Mortensen noted that because Crawford was front of him, he could only see Johnson's head, lower back, and arms.



Utah County Attorney's Office

Investigative Report

I asked Mortensen, "Is it okay in any situation, apart from this, anything, where it's okay to kick someone repeatedly in the head?" After a pause, Mortensen replied,

"I would say, 'Yes,' because the guy's actively resisting; he's a known fleeing felon. He was fighting off five of us. Kick to the head? I don't know if it was 'incidental contact.' I've only seen the video one time, but it was a full out brawl. A stomp to the head? Absolutely not. But if it was trying to kick him in the shoulder, glanced off into the head, it could happen. But in a 'normal' situation trying to take someone into custody, no a kick to the head's not appropriate. But this situation, in a full on brawl as it was; we didn't know if he didn't have any weapons. He came out of the car and the fight was still on. He never stopped fighting from the second we put hands on him. Even once he was in cuffs, he still fought for a couple of minutes."

Mortensen said it was at that time that Johnson started kicking him. Officers then set Johnson on the hood of the car and called medics. Mortensen continued,

I would never, ever, ever say a stomp to the head is appropriate, ever. But, you know situations are different for everything. In this case, he was full on fighting, trying to hurt us and he told us he was gonna run if he got the chance. So to get him in custody 'all things, until he's in custody --- everything's on the table.'

Tischner asked Mortensen if Salem Detective Cullen Carter was there. Mortensen recalled that he was there, but doesn't know where he was or his positioning during the incident.

Tischner asked Mortensen how Howell got into the car because the doors were locked. He explained that Crawford had broken out the windows, so Howell presumably reached through the window and unlocked the car. Mortensen doesn't know if Howell was able to simply open the door or whether he forced the door open.

I asked Mortensen if he had any concerns about Howell or if we (the investigators) should be concerned about him. Mortensen immediately replied, "No." He said he has no concerns with Howell at all. In fact, Mortensen labeled Howell as "one of the best sergeants" he has ever had. Mortensen stated, "Even right after this, he was like, 'Okay we need to calm it down for a while.' It was not before Buf or the sheriff says, 'Hey let's back off for a little bit Doug.' We actually met afterwards; 'Let's not do any follows for a while. Let just go do some street stuff and back things off.'"

Mortensen reiterated that he has no concerns that Howell is overly aggressive on arrests such as the one in question. Mortensen did note that he has only been on three incidents where they had to pull the suspect out of the car. One such incident occurred when they arrested a [REDACTED] who had stolen guns out of a house in Payson. Including this incident, Mortensen said that they were "back-to-back with a couple of really violent takedowns." He said the only one since this



Utah County Attorney's Office

Investigative Report

one involved a suspect on the freeway; however, once the window was broken, the suspect complied.

I asked Mortensen how long it was after the incident that they had a meeting with the sheriff (in reference to his statement above). Mortensen asserted that he had never met with the sheriff. I asked Mortensen how long it was after the incident that Doug talked to the sheriff and Undersheriff Bufton where they told him to "calm things down." Mortensen replied that he was not sure. He said that notifications had to be made that night. He observed that both Howell and Friedrichsen were on the phone while on scene following the incident. Mortensen was not sure who either were talking to.

At the conclusion of the interview, Tischner asked Mortensen if there was anything he would have done different. Mortensen replied that he would have had spikes out in front of them because they knew Johnson was a "flee-er"; however, they simply did not have the resources.

Interview of Det. Phil Crawford: Sgt. Johnston reported she contacted Det. Crawford on two separate occasions. He didn't show up or cancelled the interviews. Therefore, a statement from him was never obtained.

FURTHER INVESTIGATION:

Review of Friedrichsen's Dash Camera Footage: I reviewed the dash camera footage and documented the following: Upon Friedrichsen's arrival the camera observed Crawford exiting the minivan with a hooligan tool. The detectives in Howell's vehicle are exiting and go out of view. Johnson and most of Johnson's vehicle is not in view of the dash camera.

A few seconds into the recording the camera records detectives putting Johnson to the ground. *(It appeared he was thrown to the ground based on video. 23:44:28)* Det. Crawford, Det. Mortensen, and Officer Carter are observed in the video when Johnson hits the ground. Deputy Friedrichsen with back to the camera is observing. Sgt. Howell entered view at 23:44:31. Howell is observed with no glasses on his face. *(Det. Howell wears prescription glasses.)*

Johnson is on the ground face down. Crawford and Mortensen are over the top of him near his waist area. Carter is near Johnson's head. Howell stepped in near the shoulder and head area of Johnson. Howell begins to kick Johnson, resting his left hand on Carter's shoulder and his right hand on Crawford to maintain balance 23:44:34. *Howell kicks and knees Johnson nine times in approximately 11 seconds. 23:44:45*

During this same time, the camera records Carter swing his right arm and hand in a striking motion toward Johnson's head. 23:44:34 – 23:44:37

Deputy Dukatz is observed coming in and touching Howell on the shoulder with his hand. Howell turns to face Dukatz and stops kicking Johnson. Howell then is observed stepping away.



Utah County Attorney's Office

Investigative Report

Also, during this timed Friedrichsen move around the right side of Johnson near Mortensen with taser in hand. Friedrichsen is observed crouching down toward Johnson.

Deputy Crawford is observed doing knee slam to the torso area of Johnson while he is on the ground. 23:44:54 – 23:44:56 (*Dukatz is standing over everyone watching the events unfold.*) Dukatz moved to the feet of Johnson while still observing. It appears they are still struggling to get a handcuff(s) on Johnson. At 23:45:12, Dukatz and Friedrichsen stand up as if the suspect was handcuffed.

Friedrichsen is observed walking away from the area toward an approaching uniformed American Fork officer (*Officer Brian Morgan*).

American Fork Body Camera: Sgt. Tischner from UCAO Investigations obtained body camera footage from American Fork Police Officer Brian Morgan. Officer Morgan arrived on scene of the Johnson arrest shortly after the handcuffs were on. Morgan turned his body camera on during that time. Morgan was asked to do the accident investigation involving Detective Crawford's unmarked van and Jeremy Johnson's vehicle.

While the body camera was on and before it was muted by Officer Morgan, the camera recorded verbal communication between the Detectives and Jeremy Johnson.

Sgt. Tischner documented the pertinent conversation as follows:

0:26 *Friedrichsen states: "AF here to do conflict of interest on vehicles."*
0:36 *Suspect (Jeremy Johnson) inaudible cussing. Deputies command "quick kicking us."*
0:45 *Sgt. Howell yells to suspect, "shut-up Jeremy, shut-up." Friedrichsen states "84"*
0:56 *Johnson (S) inaudible... "punched me in mouth."*
3:49 *suspect is asked if he needs an ambulance by officers, Johnson states "want to press charges(inaudible)*
fucking punched me." Johnson then asks, "you'll file it?" Crawford responds, "yea, I'll file it."
4:03 *Johnson states, "you guys think you can beat up anyone you want, huh?" Crawford responds, "only pieces of shit like you buddy." Johnson responds, "thank-you, makes me feel better about myself."*
4:20 *Johnson asks to stand up for a sec to breathe. Johnson is told to lean up and take a breath.*
4:25 *Johnson states "you crushed my chest." There is talking back and forth between Johnson and officers, most of it inaudible. During the discussion Johnson states, "that's how I did it huh?" unknown officers mentions the accident and Jeremy states, "or was it when you got me on the ground?" Johnson then states, "we're at six's huh, fuck."*
4:46 *Johnson states, "that's how you justify shit too, just make it up." Crawford responds to Johnson, "shit ya." American Fork Officer Morgan responds also, "fake it till you make it".*



Utah County Attorney's Office

Investigative Report

Morgan continued his accident investigation. Morgan is approached by Det. Crawford and the microphone from the body camera is muted. The mic remained muted for the duration of the recording.

INTERVIEW JEREMY JOHNSON: On June 20, 2019, Jeremy Johnson was interviewed at the Utah County Jail by Sergeants Seitzinger and Johnston from UCAO.

Johnson stated he left a house in Orem where he shouldn't have been. Upon leaving the house he was followed by a Sheriff Deputy. On west Center in Orem the Deputy turned on his lights to stop him. Johnson admitted he ran from the Deputy and failed to stop. Johnson admitted to turning off his headlights trying to get away.

As he approached American Fork, he saw in his rear-view mirror headlights catching him. He stated he was travelling over 90 mph and the headlights were approaching. He exited the freeway at 500 East. The unmarked police cars were right behind him. He again attempted to evade going south on 500 East from I-15. At the bottom of the hill he stopped and threw up his hands in surrender. The unmarked police car without emergency lights on rammed his driver's side door. He felt like they were trying to kill him.

After being rammed, officers were pointing guns at his head, yelling. The officers began busting the windows out of the car. An officer came through the passenger side door telling him to get out. He told the officer with his hands up, they were pointing a gun at his head and he wasn't getting out.

The window on the driver's side was broken out and he was lifted out of the vehicle and thrown to the ground. The officers began kicking and hitting him. The kicks were to the head, shoulders, and he was punched in the face. Handcuffs were eventually placed on his wrists.

The officers stood him up and he was dazed and confused. Eventually a uniformed Deputy Sheriff came over and took custody of him. Johnson stated he believed it was UCMC detectives that beat him up.

Johnson told the investigators he was beat up bad. There were photos taken at the jail as well as statements made at the hospital to ER staff.

Johnson admitted he had a history with UCMC detectives but had never been beat up like this before.

Sgt. Johnston asked about assaulting the officer coming through the passenger side. Johnson denied that. He stated he thinks that's why the officers beat him so bad. He stated he had his hands up because there was an officer with a gun pointing at his head saying, "show me your hands." He told investigators he wasn't about to move or put his hand down and get shot. He admitted he told the officers he wasn't getting out for the same reason.



Utah County Attorney's Office

Investigative Report

In later interviews with Johnson, it was surmised it was possible he kicked Howell in the face when he was being forcibly removed from the vehicle. He was adamant he never punched the officer in the front seat with his hand.

It should be noted that we met with Jeremy Johnson on several occasions during this investigation. I met with him at a drug rehab in Orem, UT on July 1, 2019. Sgt. Tischner and I met with him at the Jail on July 10, 2019. Johnson's story has remained consistent throughout these conversations.

On July 1, 2019, I contacted Johnson wanting to get him to respond to Utah Valley Hospital. I wanted him to obtain his own medical records.

On July 10, 2019, Sgt. Tischner and I met with Johnson at the Jail. He had violated his GPS release conditions. I had him sign a waiver to obtain the medical records. During this conversation he went through the incident of February 4th again. He confirmed prior statements regarding the events.

He had been on a date with a female named [REDACTED]). The two of them left separately from the same house in Orem. Johnson later learned [REDACTED] had been arrested leaving the house, prior to him leaving.

When asked specifically about the alleged assault on the officer coming inside the vehicle from the passenger side, he acknowledged the officer was giving commands to exit the vehicle. He admitted to telling the officer, "I'm not getting out of the fucking car, I got a gun to my head."

The windows were smashed out of the driver side door and "a large guy was dragging me out of the car." He was put on the ground behind his vehicle. The officers were hitting and kicking him. He stated the officers already had his right hand under control and cuffed. The left hand was pinned under him with officers sitting on him so he couldn't get the hand out. There was an officer kicking him in the head and another punching him in the head.

Johnson claimed the officers were able to get both hands cuffed and they continued to hit and kick him. When they stood him up the officers took his belt off. They were questioning him about drugs and where they were located. He denied there were any drugs. He claimed they were still hitting him. Officers located some paraphernalia.

I asked him about a threat to use a taser. He didn't remember an officer saying anything about a taser while on the ground. After it was over, he asked the uniformed officer why he didn't kick or punch him. The uniformed officer stated, "after you released your arm, I took the taser off you."

I asked him about his cell phone. He told me he didn't know where it went. I asked if he dealt with these detectives before this incident. He didn't know for sure. I asked him if he knew any



Utah County Attorney's Office

Investigative Report

of the detective's names and he said no. I asked him if they knew him by name. He said they did for sure. They called him by name.

He openly admitted to evading from the officers. He stated the unmarked police vehicle tried to PIT him on the overpass going south on 500 East. He pulled the emergency brake and gave up.

I asked him if he could identify any of the officers in a line up. He didn't think so.

We discussed past events with law enforcement officers. He stated he has been arrested several times and even for running from officers in the past. None of those officers ever laid a hand on him. The next thing we discussed briefly was after he went to court and how he ended up in drug court. The attorney representing him stated the UCAO was offering drug court, but he had to plead guilty to all the charges. Johnson stated he would plea to everything but the assault on the officer. He adamantly denied assaulting an officer. The long-term ramifications to pleading to that charge goes way past drug court.

The attorney talked him into signing the documents, basically pleading guilty to get drug court. He believed the opportunity to go to drug court was a chance to better his life.

In closing, Johnson stated that these guys, meaning the UCMC detectives, act as if they are untouchable. In his opinion, they tried to kill him by ramming his vehicle and assaulting him during the arrest. He stated if he did the same thing to someone else that they did to him, he would be charged with attempted murder, meaning they didn't hit the rear or front axle to disable the vehicle, they rammed the driver side door.

He closed by saying, "I feel I have to pay for the things I do, and they should be held to the same standard. Just because I'm a drug addict, doesn't mean they get away with it."

I confirmed with him that I haven't made any promises.

See reports and/or recordings documenting the listed conversations.

SUMMARY OF ER REPORT JOHNSON:

[REDACTED]

[REDACTED]



Utah County Attorney's Office

Investigative Report

Further Investigation: On August 14, 2019, to collaborate [REDACTED]'s statement, I formally requested the radio traffic for the incident 19UC01230. During my conversation with dispatch personnel, I was able to determine there was radio traffic the same time as the Johnson arrest on a channel called Events 6. The radio traffic started shortly before the traffic stop attempt by Deputy Friedrichsen on Jeremy Johnson.

On August 15, 2019, after obtaining the recording and reviewing it, I determined it was detectives from UCMC working on locating Michael Schwabland in Provo. It was unrelated to Jeremy Johnson.

Also, part of the recording was the radio traffic related to case 19UC01230. I reviewed those records. It was clear based on the traffic the officers clearly knew the suspect was Jeremy Johnson because they mention his name.

I could not locate where any of the radio traffic concerning the pursuit was recorded by dispatch. I was advised there are some car to car channels and a "Talk Around" channel that are not recorded. The audio files were attached to the case file.

CONCLUSION: I will offer some facts for the two separate incidents. The two cases will be referenced separately as number 1 and number 2. Meaning the Michael Roy case, dated January 30, 2019, is number 1. The Jeremy Johnson case, dated February 4, 2019, is number 2.

Incident number 1:

1. Officers were working on a very similar case just 25 days prior this event where an officer was murdered. (*Shinners*)
2. Officers were working with the same informant as in the Shinners murder.
3. The facts are very similar to the Shinners case and it's possible police were on edge.
4. Police didn't follow their own tactics. Supervision was lacking.
5. Numerous officers were yelling verbal commands with firearms pointed at the suspect. Some of the commands were conflicting.
6. Sgt. Doug Howell was the supervisor on scene. Didn't follow his own planned tactics.
7. The suspect was the wrong person.
8. Det. Lott failed to notify other officers of the mistaken identity.
9. Officers perceived the suspect was resisting but had on a seat belt with hands up. Howell attempted several times to pull the driver from the vehicle, tearing his shirt. Only after Lott released the seat belt did the suspect come out of the vehicle.
10. Sgt. Howell admitted using his MP5 rifle as a compliance tool on the suspect.
11. Det. Lott and Officer Carter both alleged they observed Sgt. Howell sling his rifle and the rifle accidentally hit the suspect in the head.
12. Lt. Dennis Harris offering \$2,000 to the suspect after learning of the incident and injury. Offered to pay for medical expenses and failed to do so. The cash was paid days later.
13. Suspect and informant allowed to leave without any criminal charges. They had heroin and drug paraphernalia in possession.



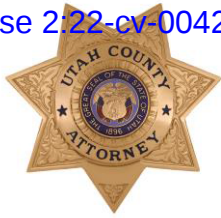
Utah County Attorney's Office

Investigative Report

14. Violations of department policies on use of force and compliance tools related to use of force.
15. The use of force board unanimously voted Sgt. Howell was outside of the use of policy by using a firearm as a compliance tool.
16. Significant bodily injury was sustained by the suspect from being hit with the rifle. Four staples put in by ER doctor.
17. No administrative sanctions given to Sgt. Howell.

Incident number 2:

1. This case was five days after incident 1.
2. Sgt. Howell was the supervisor in charge.
3. The suspect was known to officers as Jeremy Johnson. Had a prior history with officers.
4. The primary reason for the stop was a minor traffic offense.
5. Patrol Deputy Friedrichsen terminated any pursuit per policy when the suspect fled.
6. Plain clothes detectives did not terminate and "followed" the suspect at speeds over 90 mph.
7. Although officers claim there was no pursuit, they discussed using several pursuit termination techniques. IE: Boxing and PIT. Approved by Sgt. Howell.
8. Det. Crawford rammed the suspect vehicle in the driver side door with his unmarked vehicle, causing the air bags to deploy in his unmarked police car.
9. A series of poor decisions by officers and supervisor lead to policy violations.
10. Numerous officers with guns drawn gave verbal commands to the suspect. Some commands were conflicting.
11. Dukatz stated suspect was complying by putting hands up. Never saw suspect hit Howell with hand.
12. Carter said he saw the suspect hit Howell with hand.
13. Howell's report stated the suspect was not complying by refusing to get out.
14. Suspect stated he wasn't putting his hands down with a gun pointed at his head.
15. Suspect did passively resist.
16. It's reasonable to believe when the suspect was forcibly pulled from the vehicle through the driver's door window, the suspect's feet were flailing and kicking. It's possible the suspect kicked Howell in the face, causing the glasses to fly off to the backseat. If you looked at the incident as if the suspect punched Howell with a fist, right handed, logically the glasses would have fallen straight down or toward the windshield.
17. The suspect adamantly denied punching Howell.
18. There is evidence of contact with Howell. His glasses are gone in the video after the suspect was taken to the ground.
19. When the suspect is on the ground, he is being held by at least two officers and possibly three.
20. Sgt. Howell walked up, braced himself by placing his hands on Carter and Crawford. Howell proceeds to kick and knee the suspect while on the ground nine times. Only after Dukatz stepped in did Howell stop his assault.



Utah County Attorney's Office

Investigative Report

21. Dukatz refused to answer questions regarding this specific event, claiming he didn't recall doing that.
22. Friedrichsen was vague in his interview. He did comment that officers were hitting the suspect in the head. He refused to comment on Howell's use of force.
23. Friedrichsen did ask jail booking deputies to photograph the suspect in the booking room because he wanted the injuries noted.
24. Carter is observed hitting/punching the suspect in the head, while maintaining he was supporting his head or holding it on the ground.
25. Both Sgt. Greg Smith and Lt. Greg Gurney independently came to that conclusion in their review at Salem P.D.
26. Mortensen confirmed officers were kicking the suspect while down. Mortensen also confirmed it was standing technique to kick non-complaint suspects as a tool for compliance. Confirmed that was in a jail setting.
27. The use of force board had mixed opinions on the use of force. Three voted in favor of Howell and two voted against Howell.
28. The ER Doctor's notes corroborate the suspect's statement of being beat up.
29. American Fork P.D. body camera footage recorded conversations between the detectives and the suspect. Officers are recorded calling the suspect a "piece of shit." They also imply they make facts up to support their allegations.

DISPOSITION: The investigation has reached a point of near conclusion. It is very apparent the witness officers in both these cases are omitting information or some cases have perceived something different. If further information is to be obtained from these witnesses, the investigation will need to issue subpoenas to compel testimony to further explore this area.

I have reached out to numerous prosecutors within the Utah County Attorney's Office and not had any willing to assist me in this task. After discussions with Utah County Attorney David Leavitt, it was decided to ask for assistance from the Iron County Attorney's Office. Mr. Leavitt reached out to Iron County and they are willing to receive this case for screening.

On August 1, 2019, I briefly met with Iron County Attorney Chief Deputy Mike Edwards in Cedar City, UT. Mr. Edwards confirmed they had been contacted by Mr. Leavitt about this case.

On August 6, 2019, I met with the Public Corruptions Unit of the FBI. I briefed this case with them as well. They requested the case file be sent up for evaluation.

To this point in the investigation, I have not reached out to Sgt. Doug Howell for an interview. It is obvious he is aware of the investigation. I base this on the fact Utah County Under Sheriff Bufton has confirmed to me he personally made Sgt. Howell aware of the investigation. I have been made aware he has retained an attorney, based on conversations with Under Sheriff Bufton.



Utah County Attorney's Office

Investigative Report

NOTE: Please see the case Contents List for all information available from this investigation. Included are only the copies of documents relating to the specific charge(s). You may contact our office at (801) 851-8026 to make an appointment to see any additional information.